

HOUSE No. 4039

The Commonwealth of Massachusetts

PRESENTED BY:

Michelle L. Badger

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to universal breakfast and lunch at senior centers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>1/16/2025</i>

HOUSE No. 4039

By Representative Badger of Plymouth, a petition (accompanied by bill, House, No. 4039) of Michelle L. Badger that the Department of Aging and Independence provide universal breakfast and lunch at senior centers, centers for active living and councils on aging. Elder Affairs.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to universal breakfast and lunch at senior centers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 19A of the General Laws is hereby amended by adding the
2 following section:-

3 Section 45. (a) For the purpose of this section, the following words shall, unless the
4 context clearly requires otherwise, have the following meanings:

5 “Center for active living”, “senior center” or “council on aging”, a community-based
6 organization that provides services for elder adults and people with a disability.

7 (b) The department shall provide universal breakfast and lunch at senior centers, centers
8 for active living and councils on aging in the commonwealth. A senior center, center for active
9 living and council on aging living shall have a kitchen in order to participate in the department’s
10 universal breakfast and lunch program.

(c) Universal breakfast and lunch at senior centers, centers for active living and councils on aging in the commonwealth shall be funded by Senior Breakfast and Lunch Fund established by section 2KKKKKK of chapter 29.

SECTION 2. Chapter 29 of the General Laws is hereby amended by inserting, after section 2JJJJJ, the following section:-

Section 2KKKKKK. (a) For the purposes of section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Center for active living”, “senior center” or “council on aging”, a community-based organization that provides services for elder adults and people with a disability.

“Department”, the department of aging and independence established in section 1 of chapter 19A.

“Secretary”, the secretary of the department of aging and independence established in section 1 of chapter 19A.

(b) There shall be established and set up on the books of the commonwealth a separate fund known as the Senior Breakfast and Lunch Fund, hereinafter referred to as the fund. The purpose of the fund shall be to establish and support universal breakfast and lunch at senior centers, centers for active living and councils on aging in the commonwealth pursuant to section 45 of chapter 19A. The fund shall be administered by the secretary.

(c) The fund shall be credited with: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund;

(ii) interest earned on money in the fund; (iii) contributions from private sector entities, including nonprofits, foundations and other organizations; (iv) federal grants and other gifts, grants and donations for the establishment and support of seniors; and (v) a minimum of 1 per cent of the annual revenue collected from the sales tax on articles of clothing and footwear over \$175 pursuant to subsection (k) of section 6 of chapter 64H. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund.

(d) The secretary shall make expenditures from the fund including, but not limited to, the following purposes: (i) creating universal breakfast and lunch programs at senior centers, centers for active living and councils on aging; (ii) prioritizing and improving kitchens located at senior centers, centers for active living and councils on aging participating in the universal breakfast and lunch program; (iii) partnering with other breakfast and lunch programs already operating in the commonwealth; and (iv) providing resources to senior centers, centers for active living and councils on aging to best provide universal breakfast and lunch.

(e) The department shall annually, not later than December 31, report on the activity of the fund to the: (i) chairs of the joint committee on aging and independence; (ii) chairs of the joint committee on municipalities and regional government; (iii) chairs of the house and senate committees on ways and means; and (iv) clerks of the house of representatives and senate.